

HON'BLE Dr. JUSTICE CHILLAKUR SUMALATHA

CRIMINAL PETITION No.2333 of 2023

ORDER:

Heard Sri Srinath Reddy, learned counsel, who argued on behalf of Sri Nageshwar Rao Pujari, learned counsel on record for the petitioner, as well as the learned Additional Public Prosecutor who is representing the respondent-State.

2. The present Criminal Petition is filed under Section 439 Cr.P.C. seeking the Court to enlarge the petitioner, who is arrayed as accused No.1 in Crime No.510 of 2022 of Chaderghat Police Station, Hyderabad, on bail.

3. Making his submission, learned counsel for the petitioner contends that the petitioner has not committed any offence whatsoever and a false case is foisted against him. Learned counsel further states that the petitioner was arrested on 28.12.2022 and remanded to judicial custody and since then, he is in judicial custody.

4. Contending that the rigor of Section 37 of the Narcotic Drugs and Psychotropic Substances Act, 1985, does not apply to the facts of the present case, learned counsel for the petitioner has brought to the notice of this Court the contents

of the complaint which disclose the quantity of contraband seized from the possession of the petitioner. As per the contents of the complaint, 1,000 grams of Hash oil, which was contained in a polythene cover, was seized from the possession of the petitioner and other accused. Submitting that commercial quantity, as indicated in Serial No.23 of the notification issued by the Central government *vide* notification No.S.O.1055(E), dated 19.10.2021, is 1,000 grams and anything more than 1,000 grams would fall within the ambit of commercial quantity, but not the exact quantity of 1,000 grams, learned counsel for the petitioner referred to the definition of “commercial quantity” as given under Section 2(viia) of the Narcotic Drugs and Psychotropic Substances Act, 1985. The said provision reads as under:-

“commercial quantity”, in relation to narcotic drugs and psychotropic substances, means any quantity greater than the quantity specified by the Central Government by notification in the Official Gazette.”

5. Thus, by the afore-mentioned provision, it is clear that commercial quantity in relation to narcotic drugs and psychotropic substances means any quantity which is greater

than the quantity specified by the Central Government by notification in the official gazette.

6. As per the notification that is referred supra, commercial quantity of the contraband, which is indicated under Serial No.23, is 1,000 grams. Therefore, anything which is greater than 1,000 grams would fall within the ambit of commercial quantity, as rightly put forth by the learned counsel for the petitioner.

7. So far as the other ground urged is concerned, learned counsel for the petitioner states that the procedure required to be followed under Section 50 of the Narcotic Drugs and Psychotropic Substances Act, 1985, is not followed.

8. However, when the contents of the complaint are gone through, it is clear that on questioning the petitioner and upon his request that the search can be conducted in the presence of a gazetted officer, a gazetted officer was secured and in his presence, search was conducted. Therefore, this Court is of the view that as per the material available on record, there is no such deviation that can be pointed out.

9. Learned Additional Public Prosecutor making his submission states that huge quantity of Hash oil was seized

from the possession of the petitioner and that the case is still under investigation. However, learned Additional Public Prosecutor submits that four (4) witnesses were examined till now.

10. Only because the contraband seized does not fall within the ambit of commercial quantity, the accused are not entitled for bail as a matter of right. Though the rigor of Section 37 of the Narcotic Drugs and Psychotropic Substances Act, 1985, does not apply in such cases, yet the relevant factors to be taken into consideration for granting bail have to be looked into. However, by the submission of the learned Additional Public Prosecutor, it is clear that the material part of investigation is completed. Therefore, this Court is of the view that the request of the petitioner can be honoured, however conditionally.

11. Resultantly, this Criminal Petition is allowed with the following conditions:-

- (i) The petitioner/accused No.1 shall be enlarged on bail on his executing a personal bond for Rs.1,00,000/- (Rupees One lakh only) with two sureties for the like sum each to the satisfaction of the Court concerned. The sureties are directed

to submit their two latest passport size photographs at the time of furnishing solvency. One such photograph is ordered to be pasted in the Surety Register against the name of the surety. The other photograph shall be kept in the case record concerned.

(ii) In case, the petitioner/accused No.1 holds a passport, he is directed to surrender the same, if it is not seized by now.

(iii) The petitioner/accused No.1 should not involve in any unlawful activity.

(iv) The petitioner/accused No.1 should afford all assistance for proper investigation of the case.

(v) The petitioner/accused No.1 should not cause the evidence of the offence disappear.

(vi) The petitioner/accused No.1 should not tamper with the evidence in any manner.

(vii) The petitioner/accused No.1 should not by way of inducement, threat or promise, dissuade any person who is acquainted with the facts of the case, from disclosing such facts to the Court or to the Police Officer.

(viii) The petitioner/accused No.1 should ensure his presence whenever required by the Court or Police.

(ix) The petitioner/accused No.1 shall not leave India without previous permission of the court concerned.

(x) The petitioner/accused No.1 shall report before the Station House Officer, Chaderghat Police Station, Hyderabad, on every Sunday and Thursday between 10.30 a.m. and 12.00 p.m. till filing of the final report.

(xi) The petitioner/accused No.1 shall file an affidavit before the court concerned disclosing the following particulars:-

- (1) Contact number
- (2) Mail address
- (3) Residential particulars.

In case, there is any change in the aforementioned details, the petitioner shall intimate the court concerned by giving a fresh affidavit duly mentioning the change. He shall continue to do so till filing of the final report.

Any deviation of the above conditions would entitle the respondent to take appropriate steps for cancellation of the bail granted.

Dr. JUSTICE CHILLAKUR SUMALATHA

16.3.2023

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